

23STCV26607 23STCV26607

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-17

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Case Number: 23STCV26607 Hearing Date: September 17, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 17, 2026 TRIAL

DATE: Not set.

CASE: Kendrick v. Moses

CASE

NO.: 23STCV26607

DEMURRER TO CROSS-COMPLAINT

MOTION TO

STRIKE PORTIONS OF CROSS-COMPLAINT

MOVING PARTY/PARTIES: Plaintiff and Cross-Defendant Jonathan Kendrick

RESPONDING PARTY/PARTIES: Defendant and Cross-Complainant Jeff Moses

PROOF OF SERVICE:

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Defendant opposes the motions on the

merits, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.)

CASE HISTORY:

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October 30, 2023: Complaint filed.

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November 19, 2024: Defendant's
default entered.

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April 16, 2026: Defendant's motion
to set aside default granted.

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May 8, 2026: Defendant's answer and
cross-complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff and Cross-Defendant Jonathan Kendrick
("Plaintiff") sued Defendant and Cross-Complainant Jeff Moses ("Defendant") for
defamation. Defendant cross-complained
against Plaintiff because Defendant contends Defendant has an unsatisfied
judgment against Plaintiff from a prior action and Plaintiff has engaged in
fraudulent transfers to avoid satisfaction thereof. Plaintiff demurs to the cross-complaint. Defendant opposes the motions.

The

Court notes that the caption of the motions list Plaintiff as the moving party,
and counsel identify themselves as counsel for Plaintiff only. Accordingly, the Court construes the motion
as by Plaintiff, notwithstanding references to other Cross-Defendants. (See
Code Civ. Proc. § 128.7.)

TENTATIVE RULING:

Plaintiff's

demurrer to the fourth and sixth causes of action in the cross-complaint is SUSTAINED
with leave to amend. Plaintiff's demurrer
to the fifth cause of action is SUSTAINED without leave to amend.

Plaintiff's

motion to strike punitive damages allegations from Plaintiff's complaint is GRANTED with leave to amend. The motion to strike is otherwise DENIED.

Moving

party to give notice.

DISCUSSION:

Demurrer to cross-complaint

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[] the allegations of the complaint. (Code Civ. Proc., § 452.)

"This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Request

for judicial notice

Plaintiff requests judicial notice of court filings. Per Evidence Code section 452, subdivision (d), the Court takes judicial notice of the existence of these court filings. (Evid. Code, § 452, subd. (d).) The Court cannot take judicial notice of the truth of the contents thereof, however.

Abatement

Plaintiff contends the Court should abate the cross-complaint pending resolution of Rokit Drinks Limited, et al. v. Moses (Super. Ct. L.A. County, 2026, No. 26STCV15172). "'Res judicata' describes the preclusive effect of a final judgment on the merits. Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Collateral estoppel, or issue

preclusion, 'precludes relitigation of issues argued and decided in prior proceedings.' [Citation] Under the doctrine of res judicata, if a plaintiff prevails in an action, the cause is merged into the judgment and may not be asserted in a subsequent lawsuit; a judgment for the defendant serves as a bar to further litigation of the same cause of action." (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 896-897.) "Res judicata precludes piecemeal litigation by splitting a single cause of action or relitigation of the same cause of action on a different legal theory or for different relief. . . . California's res judicata doctrine is based upon the primary right theory. The primary right theory is a theory of code pleading that has long been followed in California. It provides that a cause of action is comprised of a primary right of the plaintiff, a corresponding primary duty of the defendant, and a wrongful act by the defendant constituting a breach of that duty. The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a single cause of action. As far as its content is concerned, the primary right is simply the plaintiff's right to be free from the particular injury suffered. . . . The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata." (Lincoln Property Co., N.C., Inc. v. Travelers Indem. Co. (2006) 137 Cal.App.4th 905, 912, internal citations and quotations omitted.)

Here, Rokit Drinks Limited, et al. v. Moses (Super. Ct. L.A. County, 2026, No. 26STCV15172) is pending and was filed after the cross-complaint in this action. As such, Plaintiff must raise the request for abatement in Rokit Drinks Limited, et al. v. Moses (Super. Ct. L.A. County, 2026, No. 26STCV15172), not this case. Furthermore, if Plaintiff contends that this case and Rokit Drinks Limited, et al. v. Moses (Super. Ct. L.A. County, 2026, No. 26STCV15172) are based on the same cause of action, Plaintiff must file notices of related cases in this case and in Rokit Drinks Limited, et al. v. Moses (Super. Ct. L.A. County, 2026, No. 26STCV15172), which Plaintiff has not done. (Cal. Rules of Court, rule 3.300, subds. (b), (f).)

Fourth and sixth causes of action: civil theft
and conversion

Defendant's fourth cause of action

is for civil theft and Defendant's sixth cause of action is for conversion. The elements of a cause of action for civil theft or conversion are: (1) Defendant's ownership of or right to possession of tangible personal property at the time of conversion; (2) Plaintiff's conversion, which consists of wrongful taking or disposition; and (3) damages. (Taylor v. S & M Lamp Co. (1961) 190 Cal.App.2d 700, 705.). Here, Defendant alleges that Plaintiff "has received, concealed, or withheld property of, or proceeds traceable to, [Defendant] that was 'obtained in any manner constituting theft' within the meaning of Penal Code sections 484 and 496, knowing such property to have been so obtained." (Cross-Complaint, ¶ 89.) While Defendant's allegations are not particularly clear, it seems Defendant alleges that Plaintiff benefitted from fraudulent transfers of funds that should have satisfied Defendant's judgment. (See, e.g., Cross-Complaint, ¶ 90.) Defendant does not have ownership of funds it hopes to use to satisfy a judgment. "[A] certain probability that an outcome . . . may materialize" is not a property interest that could support a claim for civil theft. (Heller Ehrman LLP v. Davis Wright Tremaine LLP (2018) 4 Cal.5th 467, 478.) Accordingly, the Court sustains the demurrer to the fourth and sixth causes of action with leave to amend.

Fifth

cause of action: conspiracy to commit fraudulent transfer and civil theft

Defendant's fifth cause of action

is for conspiracy to commit fraudulent transfer and civil theft. This is not a recognized cause of action. (Favila v. Katten Muchin Rosenman LLP (2010) 188 Cal.App.4th 189, 206; see also Patrick v. Alacer (2008) 167 Cal.App.4th 995, 1016, fn.11.) As such, the Court sustains the demurrer to the fifth cause of action without leave to amend.

Motion to strike portions of cross-complaint

Any party, within the time allowed

to respond to a pleading, may serve and file a motion to strike the whole

pleading or any part thereof. (Code Civ.

Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the Court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading;

or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subd.

(a)-(b); *Stafford v. Shultz* (1954) 42

Cal.2d 767, 782.)

Plaintiff moves to strike the

punitive damages allegations in the cross-complaint. In ruling on a motion to strike punitive damages, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v.*

Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (Coll.

Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must

allege that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) “Malice is defined in the statute as conduct

intended by the defendant to cause injury to the plaintiff or despicable

conduct which is carried on by the defendant with a willful and conscious

disregard of the rights or safety of others.”

(Coll. *Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704,

725.) “The mere allegation an

intentional tort was committed is not sufficient to warrant an award of

punitive damages. Not only must there be circumstances of oppression, fraud or

malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Ct.* (1984) 157

Cal.App.3d 159, 166, internal citations and footnotes omitted.) In support of the claim for punitive damages,

Defendant alleges that Plaintiff’s “conduct as alleged herein was intentional,

oppressive, fraudulent, and malicious within the meaning of Civil Code section

3294(c).” (See, e.g., *Cross-Complaint*, ¶

73.) These bare conclusions are not

allegations of specific facts that could support an award of punitive

damages. Accordingly, the motion to

strike the punitive damages allegations is granted with leave to amend.

Plaintiff also moves to strike

allegations Plaintiff contends are settlement communications and improper legal conclusions. A motion to strike cannot

be used as a “‘line item veto’ for the civil defendant” (*PH II, Inc.*

v. Superior Court (1995) 33 Cal.App.4th 1680, 1683.) Plaintiff is not entitled to remove any allegation Plaintiff contends is superfluous. The motion to strike these allegations is without merit.

Accordingly,

Plaintiff's demurrer to the fourth and sixth causes of action in the cross-complaint is SUSTAINED with leave to amend.

Plaintiff's demurrer to the fifth cause of action is SUSTAINED without leave to amend.

Plaintiff's

motion to strike punitive damages allegations from the cross-complaint is GRANTED with leave to amend. The motion to strike is otherwise DENIED.

Defendant

is to file an amended cross-complaint within 10 days.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 17, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling

in whole or in part.